

lution for the removal of their pastor, the Court granted an injunction against his officiating (*c*).

20. **Original intention cannot be defeated by bye-laws.** — To every corporation there belongs of common right the power of establishing *bye-laws* for the government of their own body; but this privilege cannot authorise the enactment of any rules or regulations that would tend to pervert or destroy the directions of the original founder and the objects of the charity (*d*). And so a clause in a deed investing the trustees, or the major part of them, with the power of making orders from time to time upon matters relating to a meeting-house would not enable them to convert the meeting-house, whenever they thought proper, into a meeting-house of a different description, and for teaching different doctrines from those of the persons who founded it, and by whom it was to be attended (*e*).

21. **Mistake.** — It is not the custom of the Court to remove objects of a charity who have been elected under a *mistake*, where the election was *bond fide* and without any fraud or corruption (*f*).

22. **Act of Parliament necessary for the purpose of changing the trust.** — The charity funds cannot be diverted into a *different* channel without the authority of Parliament (*g*), either directly by a special Act or indirectly through the Charity Commissioners, who are now empowered to approve, provisionally, of a scheme varying from the original endowment, with a view to submit it to Parliament for its sanction (*h*).

23. **Expenses of an Act.** — Formerly trustees, before [\*536] applying to the legislature, were in \* the habit of procuring the sanction of the Court of Chancery for their greater security; for if they took such a step upon the mere suggestion of their own minds, and failed in obtaining the

(*c*) *Cooper v. Gordon*, 8 L. R. Eq. 249.

(*d*) *Eden v. Foster*, 2 P. W. 327, resolved.

(*e*) *Attorney-General v. Pearson*, 3 Mer. 411, *per* Lord Eldon.

(*f*) *Re Storie's University Gift*, 2 De G. F. & J. 529, see 531, 540.

(*g*) *Attorney-General v. Market Bosworth School*, 35 Beav. 305.

(*h*) 16 & 17 Vict. c. 137, ss. 54–60. [And see 37 & 38 Vict. c. 87, which transfers the powers of the late Endowed Schools Commissioners to the Charity Commissioners.]